

SAMPLE CONSTRUCTION CONTRACT

Between ABC Construction Corp (the Client) and the Contractor.

1. SCOPE OF WORK

1.1 The Contractor shall perform the complete renovation of the commercial building located at the Site, including demolition, structural works, mechanical and electrical installation, and final finishing.

1.2 Any work not expressly described in this Article is excluded from the scope and requires a written change order signed by both parties.

2. CONTRACT PRICE AND PAYMENT

2.1 The total contract price is EUR 2,400,000 (two million four hundred thousand euros), fixed and not subject to revision except under Article 6.

2.2 The Client shall pay monthly progress invoices within thirty (30) days of certification. Late payment accrues interest at 8% per annum.

2.3 A retention of 5% shall be withheld from each payment and released upon issue of the Final Completion Certificate.

3. TIME FOR COMPLETION

3.1 The Works shall commence on 1 June 2025 and shall achieve Practical Completion no later than 31 December 2025.

3.2 Liquidated damages of EUR 3,000 per calendar day shall apply for each day of delay beyond the Completion Date, capped at 10% of the price.

4. TECHNICAL REQUIREMENTS

4.1 All structural steel shall comply with EN 1090-2 execution class EXC3.

4.2 Concrete shall achieve a characteristic strength of C30/37 and shall be tested in accordance with EN 12390-3 at 7 and 28 days.

5. QUALITY ASSURANCE AND INSPECTION

5.1 The Contractor shall maintain a documented Quality Plan and shall grant the Client access to all inspection and test records upon request.

5.2 Defective work identified during inspection shall be rectified at the Contractor's cost within fourteen (14) days of written notice.

6. VARIATIONS AND CLAIMS

6.1 The Client may order variations in writing. Valuation shall be agreed before execution or, failing agreement, determined at contract rates.

6.2 Any claim for additional payment or extension of time shall be notified within twenty-eight (28) days of the event giving rise to it.

7. LIABILITY, INSURANCE AND GOVERNING LAW

7.1 The Contractor's aggregate liability under this Contract shall not exceed the total contract price, save for death, personal injury or fraud.

7.2 The Contractor shall maintain all-risks insurance for the full reinstatement value of the Works throughout the construction period.

7.3 This Contract is governed by Spanish law, and the parties submit to the exclusive jurisdiction of the courts of Madrid.

8. TERMINATION

8.1 Either party may terminate for material breach not remedied within thirty (30) days of written notice specifying the breach.

